

INDEPENDENT CONTRACTOR AGREEMENT

SALES REPRESENTATIVE

Contractor Information

Name: _____
Mailing Address: _____
Cell Phone #: _____
Email: _____
Emergency Contact Name and Information: _____

Required Documentation

Signed Contract []
Copy of Driver's License []
Voided Check []
W-9 []

This Independent Contractor Agreement (the "Agreement") is entered into effective as of _____ (the "Effective Date") by and between **JD Marketing LLC DBA Kilo Energy** (the "Company"), a Utah limited liability company, and _____, an individual (the "Contractor"). Company and Contractor are each a "Party" and together the "Parties." Notices to either Party are to be sent as set forth in Section 16.

Background.

Company markets and sells residential solar, battery storage, and related energy products through a network of authorized installation partners. Company engages independent sales contractors to identify Customers, present Company-approved offerings, and submit deals through Company's commission application. Company does not itself perform installation; the assigned installer holds the homeowner contract and performs the installation work.

Contractor wishes to provide sales services to Company on the independent-contractor terms set forth in this Agreement.

A. Definitions. The following capitalized terms have the following meanings in this Agreement:

"Agreement" means this Independent Contractor Agreement, including its exhibits, as amended from time to time.

"Area" or "Sales Area" means the geographic area Contractor has proposed and Company has approved as the area in which Contractor will perform the Services. Contractor may propose modifications at any time, subject to Company's approval.

"Baseline Rate" means the per-Installer per-watt rate configured in the Commission Application that fixes a rep's compensation reference for the rep's role (closer or setter) on a Deal.

"Commission Application" means Company's internal commission management system (currently at app.kiloenergies.com) used for Deal submission, in-app calculator pricing, milestone tracking, and reimbursements.

"Confidential Information" means all non-public information of Company, including without limitation pricing (including per-installer wholesale or "redline" pricing), customer information, the Commission Application and its data, Trade Secrets, and any other information a reasonable person would understand to be confidential. Confidential Information does not include information that (a) is or becomes publicly known through no fault of Contractor; (b) was lawfully in Contractor's possession prior to disclosure by Company without confidentiality obligation; or (c) is independently developed by Contractor without use of Confidential Information.

"Customer" means any person or entity who has signed, or is being solicited to sign, a Customer Contract, including any lead provided by Company or developed by Contractor while engaged under this Agreement.

"Customer Contract" means an installer's residential solar, battery storage, or energy-product purchase, lease, loan, or power purchase agreement signed by a Customer in connection with a deal submitted by Contractor through the Commission Application.

"Deal" means a single Customer Contract submitted by Contractor through the Commission Application and accepted by Company.

"Good Standing" means a Customer Contract for which (i) all paperwork is approved, (ii) the design is completed, (iii) any change orders have been resolved, and (iv) there are no outstanding unresolved issues with the Customer or the assigned installer.

"Installer" means a third-party installation partner Company has engaged to fulfill Customer Contracts. Company may add, remove, or change Installers in its discretion.

"Intellectual Property" means all patents, copyrights, trademarks, trade secrets, know-how, software, and other proprietary rights owned or developed by Company or its affiliates, including without limitation rights in and to the Commission Application, Customer Contract forms, intake forms, training materials, and marketing assets.

"Pay Scale" means the per-Installer Baseline Rates, milestone allocations, and related compensation rules configured in the Commission Application. Pay Scale revisions are governed by Section 3.12.

"**PTO**" means "permission to operate" granted by the applicable utility, allowing the installed system to be activated.

"**Restricted Principals**" has the meaning given in Section 15.2(b).

"**Sales Term**" means the period beginning on the Effective Date and continuing until terminated under this Agreement.

"**Services**" means the sales, lead-generation, intake, and Customer-care services Contractor performs for Company under this Agreement.

"**Trade Secrets**" means information that derives independent economic value from not being generally known and is the subject of reasonable efforts by Company to maintain its secrecy.

B. Conditions Precedent, Appointment and Term.

B.1 Conditions Precedent. Neither this Agreement nor any obligation of Company shall be effective until each of the following has been satisfied by Contractor: (i) Company has approved the Sales Area in which Contractor will perform the Services; (ii) Contractor has provided evidence of all licenses, registrations, permits, and approvals required by any federal, state, or local authority for Contractor to perform the Services in the Sales Area, including without limitation Home Improvement Salesperson registration with the California Contractors State License Board ("CSLB HIS") if Contractor will solicit residential customers in California, and any analogous registration in any other state; (iii) each representation and warranty of Contractor in this Agreement is true and correct; (iv) Contractor has executed this Agreement; and (v) Contractor has provided such other documentation as Company requires from time to time. Any compensation owed to Contractor is contingent on prior satisfaction of each Condition Precedent.

B.2 Appointment. Subject to compliance with the Conditions Precedent and the other terms of this Agreement (including the Conflicts; Limited Channel Exclusivity provision in Section 15), Company engages Contractor as an independent-contractor sales representative to market and sell solar, battery storage, and related energy products on behalf of Company in the Area.

B.3 Term. The Sales Term begins on the Effective Date and continues until terminated under Section 13. Either Party may terminate as provided in Section 13.

B.4 Representations and Acknowledgements. By executing this Agreement, Contractor represents and warrants that: (a) all Conditions Precedent have been satisfied; (b) Contractor has not been convicted of a felony or any misdemeanor crime of moral turpitude; (c) Contractor has provided truthful responses to all questions and information requested by Company; and (d) Contractor has the experience, qualifications, and capacity to perform the Services as an independent contractor.

1. Engagement; Services and Work Orders.

1. Company engages Contractor to identify prospective Customers, present Company-approved solar, battery storage, and related energy product offerings, complete intake documentation through the Commission Application, and provide post-sale Customer support as reasonably requested. Contractor will become familiar with the Customer Contract forms used by each authorized Installer and will deliver the Services consistent with Exhibit B (White Glove Service Standards — Code of Conduct) and applicable law.
2. Multi-Installer Engagement. Company markets and sells through Installers Company has engaged from time to time, as configured in the Commission Application. Contractor may be authorized by Company to sell on behalf of one or more such Installers. Each Installer's pricing, payment timing, required intake fields, and chargeback policy are configured in the Commission Application and may be updated by Company from time to time. The Installer (not Company) holds the Customer Contract and performs the installation; Contractor will not represent otherwise to any Customer.
3. Customer Information Handoff. Contractor authorizes Company to share Customer-provided information (including name, contact information, utility data, and intake details) with the assigned Installer and Company's vendors for project execution. Contractor warrants that Customer consent was obtained at intake.
4. Work Orders. From time to time Company may issue work orders, blitz assignments, lead packages, or other written or electronic engagements (each a "Work Order") describing specific Customers, areas to canvass, or campaigns. Each Work Order is incorporated into and governed by this Agreement; in the event of conflict the Agreement controls except where the Work Order expressly states otherwise. Contractor may accept or decline any Work Order in Contractor's sole discretion.
5. No Promise of Volume. This Agreement is not a guarantee that Company will issue any Work Order or that Contractor will receive any minimum lead volume, deal volume, or compensation. Company may engage other contractors, some of whom may compete with Contractor. Any training, sales meetings, ride-alongs, or onboarding sessions Company offers to Contractor are voluntary, and attendance is not a condition of engagement or compensation under this Agreement.
6. Blitz Participation. From time to time Company may organize sales blitzes, including with Company-provided housing, transportation, or meals. Participation is voluntary. Each blitz is governed by the Blitz Terms & Conditions document that Contractor will accept electronically (whether by tapping Accept in the Commission Application or by other electronic means designated by Company) before each blitz; those terms are incorporated by reference into this Agreement for the duration of the relevant blitz.

2. Customer Care and Compliance.

1. Contractor will comply with all applicable laws, including without limitation OSHA, immigration (U.S. Form I-9 obligations applicable to Contractor's own personnel), federal and state consumer protection law, the Telephone Consumer Protection Act, the FTC Act, applicable do-not-call and door-to-door solicitation rules, the California Solar Energy Systems Act and Home Improvement Salesperson rules where applicable, and the licensing and registration laws of every state in which Contractor solicits Customers.
2. Contractor will take reasonable care not to damage Customer property and will abide by the White Glove Service Standards in Exhibit B.

3. Compensation; Chargebacks; Offset.

1. Pay Scale. Contractor's compensation on each Deal is determined by the Pay Scale in effect on that Deal's sold date and the role assigned to Contractor on that Deal (closer or setter), as recorded in the Commission Application. The Pay Scale and its mechanics are described in Exhibit A. Company may revise the Pay Scale prospectively at any time by updating the per-installer rates configured in the Commission Application; Deals sold on or after the revision's effective date will price at the revised rates through the in-app calculator, and Deals sold before that date will continue to use the prior rates snapshotted to those Deals.
2. Milestone Structure. Compensation on each eligible Deal is paid in up to three milestones (M1, M2, M3) as follows:
 - Milestone One ("M1") — Confirmed Deal Advance. M1 is earned and paid when a Deal is confirmed — meaning the Customer Contract is executed, the financing application has been approved (or full cash payment has been confirmed), and no remaining customer-side step prevents the project from proceeding. The Commission Application records this state as the Acceptance phase. M1 is \$1,000 if the system size is five (5) kW or greater and \$500 if less than five (5) kW. On a paired Deal with both a closer and a setter, M1 is paid 100% to the setter; on a self-generated Deal where one rep performs both roles, M1 is paid to that rep. M1 is an advance against Contractor's total commission on the Deal and is recovered from M2 and any subsequent milestone payments. If, on termination of this Agreement or cancellation of a Deal, M1 advances paid to Contractor have not been fully recouped from earned commission on that Deal or any other Deal, the unrecouped amount is a contractor receivable due to Company, payable on demand by direct invoice notwithstanding the cessation of further commission activity. This receivable survives termination of this Agreement and may be pursued under Section 3.7 (Offset) and applicable law.
 - Milestone Two ("M2") — Payable on the next regular pay cycle following the later of (a) advancement to the "Installed" phase in the Commission Application and (b) Company's receipt of the corresponding installer funding for the Deal. M2 is the percentage of the closer's and setter's remaining commission (after M1) corresponding to the assigned Installer's install-pay percentage, as configured in the Commission Application.

- Milestone Three ("M3") — Where the assigned Installer's install-pay percentage is less than 100%, the remainder is paid as M3 upon advancement to the "PTO" phase. Where the install-pay percentage is 100%, no M3 is owed on that Deal.
3. Authoritative Calculations and Records. Commission amounts are calculated by Company under the Pay Scale; Company's calculations and records are authoritative absent manifest error. Company maintains records of Deal state, milestone transitions, and commission amounts within the Commission Application and will produce relevant records to Contractor on reasonable written request in connection with a pay dispute about a specific Deal.
 4. Trigger and Correction. Milestone payments are triggered by Deal state changes recorded in the Commission Application. Company may correct Deal state and adjust commission accordingly, including reversing prior advancements in state.
 5. Pass-Through Chargebacks. Compensation paid to Contractor on a Deal is contingent on the Deal remaining in Good Standing through PTO and on Company retaining the corresponding installer payment. If a Customer Contract is cancelled, rescinded, voided, or otherwise unwinds, or if the Installer or any lender claws back, withholds, or reduces a payment to Company in respect of the Deal, Contractor will repay or forfeit a corresponding amount of compensation as follows: (a) any draft or pending milestone is voided; (b) for each milestone already paid to Contractor, a chargeback equal to the paid amount will be recorded in the Commission Application against Contractor; (c) Company may offset such chargeback against any current or future amounts owed to Contractor under this Agreement or any other agreement; and (d) if Contractor has no current or future amounts owed at the time of chargeback, Company may invoice Contractor directly for the chargeback amount, payable within thirty (30) days. Chargeback exposure passes through to Contractor: Contractor's recovery risk on each Deal mirrors Company's recovery risk against the Installer on that Deal.
 6. Survival; Post-Termination Chargebacks. The chargeback, offset, and direct-invoice rights described in this Section 3 survive termination or expiration of this Agreement for so long as any Deal in which Contractor participated remains subject to potential chargeback under any applicable Customer Contract, Installer agreement, or lender agreement. Contractor remains obligated to repay any chargeback assessed after termination.
 7. Offset. Company may at any time offset any amount owing from Contractor to Company (including chargebacks, the missed-appointment cost recovery below, lost or unreturned Company property, and any other liquidated amount under this Agreement) against any amount owed to Contractor by Company.
 8. Trainer Override. If Contractor is enrolled as either a trainer or a trainee under a separate written Trainer Addendum, that Addendum will govern the per-watt override and its effect on the parties' commission split. Absent a signed Trainer Addendum, no trainer override applies to Contractor's Deals.

9. **Missed-Appointment Cost Recovery.** If a scheduled Customer appointment is missed without Customer-side cause and Contractor cannot establish attendance by either (i) check-in through the Commission Application or (ii) a timely photograph showing the residence's front door with the address visible, Contractor will reimburse Company \$50 as a liquidated estimate of the administrative cost to reassign or reschedule. The Parties acknowledge that actual damages would be difficult to ascertain and that \$50 is a reasonable estimate of those costs, not a penalty. The amount may be offset under the Offset paragraph of this Section 3.
10. **Reimbursements.** Contractor is responsible for Contractor's own business expenses and will not be reimbursed for any expense absent prior written approval by Company. Reimbursement requests, where pre-approved, must be submitted through the in-app reimbursement workflow on the rep-facing surfaces of the Commission Application with supporting receipts; payment of approved reimbursements will follow Company's standard reimbursement cycle.
11. **Taxes.** Contractor is responsible for all federal, state, and local income, self-employment, and other taxes payable on amounts received under this Agreement. Company will issue an annual IRS Form 1099-NEC (or successor form) to Contractor reporting amounts paid. If applicable, Contractor is responsible for any sales or use taxes related to the underlying Customer Contracts.
12. **Pay Scale Revisions; No Retroactivity.** Company may revise the Pay Scale (including per-Installer Baseline Rates and milestone allocations) prospectively at any time. Each Deal is priced according to the Baseline Rates and Pay Scale in effect at the Deal's sold date as recorded in the Commission Application; a Pay Scale revision does not retroactively affect any Deal already sold. Company will provide notice of Pay Scale revisions to Contractor as promptly as practicable, by email, in-app message, or written notice; the timing of such notice depends on when Company itself receives notice of the underlying change from the relevant Installer.

Exception — Installer-Initiated Adjustments. If an Installer retroactively adjusts pricing on a Deal already sold (by repricing, baseline change, or any other mechanism that reduces the amount Company receives on the Deal), Company may correspondingly adjust the Baseline Rate or commission amounts applied to that Deal to pass through the Installer's adjustment. Company will notify Contractor as promptly as practicable of any such adjustment and the reason for it. This exception does not entitle Company to make retroactive adjustments that are not initiated by an Installer or otherwise required by a third party.

4. Confidentiality.

1. Contractor will hold all Confidential Information in strict confidence and will not disclose, copy, publish, or use any Confidential Information except as necessary to perform the Services. Contractor will use at least the same degree of care that Contractor uses to protect Contractor's own confidential information, and in no event less than reasonable care.
2. Customer Information. Customer-provided information (including names, contact information, utility data, financial information used for credit checks, and intake details) is Confidential Information and is also subject to applicable consumer-privacy laws. Contractor will not retain, share, or use Customer information for any purpose other than executing the Services for Company, will not transmit Customer information through unapproved channels (including personal email, personal cloud storage, or unsanctioned messaging tools), and will promptly notify Company of any actual or suspected unauthorized access, use, or disclosure of Customer information.
3. Use of Company Resources. Contractor shall not use any Company-provided resource — including without limitation the Commission Application, customer leads, customer-relationship-management systems, training materials, intake forms, pricing data, installer contact information, marketing assets, branded apparel, or any data derived from Company systems — to support, refer, or facilitate any sale or business activity for any third party. Misuse of Company resources is a material breach permitting immediate termination.
4. Equitable Relief. Contractor acknowledges that money damages are not a sufficient remedy for breach of this Section and agrees that Company is entitled to injunctive and other equitable relief without need to post bond, in addition to any other remedy.
5. Survival. This Section survives termination of the Agreement. Confidentiality obligations continue for three (3) years after termination; Trade Secrets remain protected for so long as they qualify as such under applicable law. Upon termination or on Company's request, Contractor will return or destroy all Confidential Information and certify destruction in writing.

5. Inspections and Records.

Contractor will maintain a sales-process control system reasonably acceptable to Company. Records of Contractor's work, including intake forms, Customer correspondence, and Deal documentation, will be made available to Company on reasonable request during the Sales Term and for three (3) years thereafter. Submission and storage of Deal records through the Commission Application satisfies this Section.

6. Warranties.

Confidential Information and the Commission Application are provided on an "AS IS" basis. COMPANY MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING

WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. Company is not liable for damages arising out of Contractor's use of Confidential Information or the Commission Application.

7. Indemnification and Insurance.

1. Indemnification by Contractor. Except to the extent caused by Company's gross negligence or willful misconduct, Contractor will defend, indemnify, and hold harmless Company, its directors, officers, employees, agents, successors, assigns, and Customers against any and all claims, demands, losses, judgments, damages, costs (including reasonable attorneys' fees), fines, penalties, and liabilities arising out of or in connection with: (a) any act or omission of Contractor or Contractor's personnel; (b) any breach of this Agreement by Contractor; (c) Contractor's misclassification of, or failure to pay or report taxes on behalf of, any of Contractor's personnel; (d) any false, misleading, or unauthorized statement by Contractor to a Customer; or (e) any violation of consumer-protection law by Contractor.
2. Mutual IP Indemnification. Each Party will defend, indemnify, and hold harmless the other against any third-party claim that the indemnifying Party's materials or processes provided under this Agreement infringe a third party's patent, copyright, trademark, or trade-secret rights.
3. Insurance. During the Sales Term, Contractor will maintain at Contractor's own cost (i) if Contractor has any employees or other personnel performing the Services, statutory Workers' Compensation and Employer's Liability insurance covering such personnel (a sole-proprietor Contractor with no personnel is exempt from this requirement and will provide a sole-proprietor exemption affidavit on request); (ii) Commercial General Liability insurance with limits of at least \$1,000,000 per occurrence and \$2,000,000 aggregate, naming Company as additional insured; and (iii) Business Automobile Liability insurance covering all vehicles used in connection with the Services with a minimum limit of \$1,000,000 per accident, naming Company as additional insured. Insurance must be primary and non-contributory as to Company; carriers must give Company at least sixty (60) days' prior written notice of cancellation, non-renewal, or material change. Contractor will furnish certificates of insurance and endorsements on request. All policies will contain a waiver of subrogation in favor of Company.

8. Limitation of Liability.

EXCEPT AS REQUIRED BY APPLICABLE LAW, COMPANY WILL NOT BE LIABLE TO CONTRACTOR OR ANY THIRD PARTY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL, INCIDENTAL, OR PUNITIVE DAMAGES, INCLUDING LOST

PROFITS OR ANTICIPATED COMMISSIONS, ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. COMPANY'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT WILL NOT EXCEED THE AMOUNTS PAID OR PAYABLE TO CONTRACTOR ON THE SPECIFIC DEAL GIVING RISE TO THE CLAIM.

9. Compliance; Substance Use During Work and on Company Premises; Background Check.

1. Substance Use During Work and on Company Premises. Contractor will not use, consume, possess, or be impaired by alcohol, marijuana (including medical marijuana to the extent state law permits restriction in commercial/contractor contexts), or any controlled substance (other than a substance prescribed to the user and taken in accordance with the prescription) while (a) performing Services under this Agreement, (b) on Customer premises in connection with the Services, (c) on Company premises, or (d) in Company-provided housing (including any housing furnished or paid for by Company during a sales blitz or similar engagement). For the avoidance of doubt, this Section does not restrict lawful off-hours use of legal substances in Contractor's own residence or other private setting unrelated to the Services. A material violation of this Section is grounds for immediate termination of this Agreement.
2. Background Check. Contractor authorizes Company or its agents to conduct a background check as a Condition Precedent and consents to the related release authorization. Failure to cooperate is grounds for termination.

10. Conflict of Interest and Communications.

1. Contractor represents that Contractor has no contract, arrangement, or interest that would create a material conflict with Contractor's obligations under this Agreement, and will not enter into any such arrangement during the Sales Term.
2. Contractor will not (a) make any false, misleading, or disparaging statement about Company, its Installers, its other contractors, or its officers, directors, members, or affiliates to Customers, prospective Customers, competitors, or any other person, except for truthful testimony under lawful subpoena or court order (in which case Contractor will give Company prompt notice if legally permitted); (b) solicit any Customer to perform Services for any competing company; or (c) submit a bid or proposal for any solar, battery, or energy-product installation for any third-party entity that is not Company. For each material breach of this Section, Contractor will pay Company \$1,000 as liquidated damages, the Parties acknowledging that actual damages would be difficult to determine.

11. Cooperative Sales; Trademark License.

1. Contractor Leads. Contractor may, at Contractor's discretion, refer leads to Company. If Company successfully closes such a referral as a Customer, Company may compensate Contractor for the referral on terms agreed in a separate signed writing.
2. Trademark License. Subject to Company's reasonable usage guidelines, Company grants Contractor a non-exclusive, non-transferable, revocable license during the Sales Term to use and display Company's names and trademarks (the "Company Marks") solely as necessary to perform the Services. The license terminates automatically on expiration or termination of this Agreement.

12. Intellectual Property.

All leads, Customer information, designs, systems, know-how, intake forms, and other information generated or accessed in the course of the Services, and all data in the Commission Application, are and will remain the property of Company and constitute Intellectual Property of Company. Any improvements, suggestions, or work product Contractor creates in the course of the Services that relate to Company's business are assigned to Company on creation as part of Company's Intellectual Property. Contractor will execute any documents reasonably necessary to perfect Company's ownership of such Intellectual Property.

13. Expiration and Termination.

1. Termination for Convenience. Either Party may terminate this Agreement for convenience by giving the other Party at least seven (7) days' written notice.
2. Termination for Cause. Either Party may terminate this Agreement immediately on written notice if the other Party materially breaches this Agreement (including the Confidentiality, Compliance, Conflict of Interest, or Non-Solicitation sections) and fails to cure (if cure is possible) within seven (7) days of written notice of the breach. Company may also terminate immediately on written notice for fraud, gross misconduct, or any conduct that exposes Company or any Customer to material harm.
3. Mutual Termination. The Parties may terminate this Agreement at any time by mutual written agreement.
4. Pipeline Disposition. On termination for any reason other than fraud or material uncured breach by Contractor: (a) Deals already in Good Standing as of the termination date will continue to pay through their normal milestones, subject to the Pass-Through Chargebacks paragraph of Section 3; (b) Deals not yet in Good Standing as of the termination date may, in Company's discretion, either continue to pay through their normal milestones or be reassigned to another contractor with no further compensation owed to Contractor; and (c) M1 advances already paid on Deals that subsequently cancel remain subject to chargeback.

On termination for fraud or material uncured breach by Contractor, Company may withhold pending payment on any Deal pending investigation and may, in its discretion, deem all unpaid milestones forfeited to the extent permitted by applicable law.

5. Return of Materials. Within seven (7) days after termination, Contractor will return to Company all Customer files, Confidential Information, Company property, and any equipment supplied by Company; and will permanently delete any copies of Confidential Information held outside the Commission Application.
6. No Liability for Termination. Neither Party will be liable to the other for damages on account of termination, including loss of prospective revenues or recovery of expenses incurred in anticipation of future business. This does not limit Contractor's right to compensation already earned under the Pipeline Disposition paragraph above.

14. Non-Solicitation.

1. Customers. During the Sales Term and for twelve (12) months thereafter, Contractor will not, directly or indirectly, solicit any Customer to whom Contractor was introduced by Company or whom Contractor worked or pitched on behalf of Company, for the purpose of providing solar, battery storage, or energy-product sales or services that compete with Company's business. For any Contractor primarily residing in California at the time of termination, the duration of the customer non-solicit obligation under this Section 14.1 is reduced from twelve (12) months to nine (9) months.
2. Personnel. During the Sales Term and for twelve (12) months thereafter, Contractor will not, directly or indirectly, solicit, hire, or engage any then-current employee or independent contractor of Company.
3. No Non-Compete. This Agreement does not impose any post-termination non-compete. The in-term restrictions in Section 15.2 (Conflicts; Limited Channel Exclusivity), the Customer and personnel non-solicits above, and the confidentiality obligations in Section 4 are the only restrictions on Contractor's outside activities.

15. Relationship of the Parties; Assignment.

1. Independent Contractor. Contractor is an independent contractor. Contractor is not an employee, agent, partner, or joint venturer of Company and is not eligible for any Company employee benefits. Contractor is solely responsible for the manner and means of performing the Services, including hours of work, methods, equipment, and personnel decisions. Company's direction is limited to the results of the Services and the standards in Exhibit B; the day-to-day execution is Contractor's.
2. Conflicts; Limited Channel Exclusivity.

(a) *Disclosure.* Contractor will disclose to Company in writing, before commencing any such engagement, any concurrent or prospective sales engagement with any other principal involving residential solar electric systems, battery storage systems, or related residential energy products. Disclosure will identify the other principal and, on request, the installer or installers with whom that principal works.

(b) *Restricted Principals.* During the Sales Term, Contractor will not perform sales services, directly or indirectly, for or on behalf of any other principal that resells, refers to, or otherwise distributes residential solar or battery installations through any Installer with which Company has an engagement (the "**Restricted Principals**"). The current list of Installers is configured in the Commission Application and may be updated by Company from time to time; Contractor's restriction follows the then-current list. For clarity, Contractor remains free to perform sales services for principals that operate with installer networks entirely separate from Company's Installer roster.

(c) *Non-Use of Company Resources.* Contractor will not use any Company-provided resource (including without limitation the Commission Application, leads, customer data, intake forms, pricing data, installer contact information, training materials, or branded apparel) to support any sales activity for any other principal, whether Restricted or not. This obligation continues after termination as set forth in Section 4 (Confidentiality).

(d) *No Double Submission.* Contractor will not submit the same Customer or service address as a Deal under this Agreement and as a deal for any other principal. Contractor will also not solicit any Customer in violation of Section 14 (Non-Solicitation).

(e) *Outside the Industry.* Nothing in this Section 15.2 restricts Contractor's ability to engage in occupations or businesses outside the residential solar and battery industry.

(f) *Breach.* Contractor's failure to make any disclosure required by Section 15.2(a), or Contractor's engagement with any Restricted Principal in violation of Section 15.2(b), is in each case a material breach of this Agreement permitting Company to terminate this Agreement for Cause under Section 13.2 in addition to any other remedy available to Company at law or in equity. A material breach under this Section 15.2 forfeits any Good-Standing protection that would otherwise apply to Contractor's pipeline under Section 13.4.

3. *Taxes; Benefits.* Company will not withhold income, FICA, or other taxes from amounts paid to Contractor and will not contribute to social security, unemployment, workers' compensation, or other benefit programs on Contractor's behalf. Contractor is responsible for all such taxes and contributions.
4. *No Employer Benefits.* Contractor is not, and will not be treated as, an employee of Company for any purpose. Contractor is not eligible for, and waives any claim to, employee benefits provided by Company to its employees, including without limitation health insurance, retirement contributions, paid time off, sick leave, unemployment insurance (other than as required by mandatory state law), or workers' compensation coverage (other

than as required by mandatory state law for Company personnel; Contractor is responsible for its own workers' compensation as set forth in Section 7.3).

5. No Authority. Contractor has no authority to bind Company, sign contracts on Company's behalf, or create any obligation in Company's name without prior written authorization.
6. Tools and Equipment. Contractor will provide, at Contractor's own expense, the tools, equipment, transportation, and supplies necessary to perform the Services, except for any equipment or branded materials Company elects in writing to provide. Company-supplied equipment must be returned on termination or on request; loss or damage may be offset under the Offset paragraph of Section 3.

Own Tools and Equipment. Contractor uses its own tools and equipment to perform the Services, including without limitation its own mobile device, transportation, laptop or tablet, and any other items necessary for the conduct of the Services. Company-provided resources are limited to the Commission Application, branded materials made available under Section 11, and any other resources Company expressly furnishes in writing. Contractor bears its own costs for tools and equipment except as Company may expressly reimburse under Section 3.10.

7. Personnel; Assignment. Contractor may engage Contractor's own personnel to perform the Services, provided Contractor remains solely responsible for their compensation, taxes, supervision, and compliance with Sections 2, 4, and 9, and provided each such person satisfies the licensing, registration, and background-check requirements applicable to the Services. Contractor will not assign or delegate this Agreement as a whole without Company's prior written consent. Company may assign this Agreement to any affiliate or successor in interest by way of merger, acquisition, or sale of all or substantially all of its assets.
8. California-Specific Notice. Where Contractor solicits Customers in California, the Parties acknowledge that California Labor Code §2775 and the California Supreme Court decisions in *Dynamex* and *Borello* set a heightened bar for independent-contractor classification. Contractor represents that Contractor (a) is engaged in an independently established trade, occupation, or business of the same nature as the Services; (b) is free from Company's control and direction in connection with performance of the Services, both under this Agreement and in fact; and (c) performs work outside the usual course of Company's business as a sales-and-marketing organization rather than an installer. Contractor further acknowledges responsibility for CSLB Home Improvement Salesperson registration prior to soliciting California residential customers and for compliance with the California Solar Energy Systems Act (including the homeowner three-day right of cancellation).
9. Direct Seller Status (California). The Parties intend that Contractor qualify as a Direct Seller within the meaning of California Labor Code §2783(g) for any activity conducted in California, and that the Direct Seller exemption from California Labor Code §2775

(Dynamex / AB5) apply to that activity. In furtherance of that intent: (a) Contractor's compensation is based entirely on commissions earned from direct sales to ultimate consumers, not on hours worked; (b) Services are performed primarily away from any permanent retail establishment of Company; (c) the Parties acknowledge in writing in this Agreement that Contractor is not treated as an employee for state or federal tax purposes; and (d) this Agreement is the written contract required by California Labor Code §2783(g)(3).

16. Notice; Electronic Commerce; Choice of Law.

1. Notice. Notices must be in writing and delivered by registered mail, overnight courier, or personal delivery (signature required), or by email. Each Party will provide a notice address (mailing and email) at intake/onboarding and will maintain a current notice address with the other Party at all times during the Sales Term; either Party may update its notice address by written notice to the other Party. Notices to Company will be sent to: JD Marketing LLC dba Kilo Energy, 723 North 540 East, Mapleton, UT 84664, with a copy by email to the address Company designates from time to time. Company may update the foregoing notice address by written notice to Contractor.
2. Electronic Records and Signatures. The Parties consent to use of electronic records and electronic signatures and agree that electronic communications, click-through acceptances, and the audit log of the Commission Application are valid and binding records of the Parties' agreements and acts.
3. Governing Law and Venue. This Agreement is governed by and construed in accordance with the laws of the State of Utah, without regard to conflict-of-laws principles. Any action arising out of or related to this Agreement must be brought exclusively in the state or federal courts located in Utah County, Utah, and the Parties submit to the exclusive jurisdiction of those courts. THE PARTIES WAIVE ANY RIGHT TO TRIAL BY JURY. Notwithstanding the foregoing, where mandatory law of Contractor's principal state of residence requires otherwise, that law and its venue rules govern; for a Contractor primarily residing in California, California Labor Code §925 governs venue elections to the extent applicable.

17. General.

1. Entire Agreement. This Agreement (together with its exhibits, any signed Trainer Addendum, and any signed referral agreement) is the entire agreement of the Parties and supersedes all prior agreements and understandings on the subject matter.

2. Amendments. No amendment to this Agreement is effective unless in writing and signed by an authorized representative of each Party, except as expressly permitted by Section 3.1 (Pay Scale) and Section 3.12 (Pay Scale Revisions).
3. Severability. If any provision of this Agreement is held unenforceable, that provision will be limited or omitted to the minimum extent necessary, and the remaining provisions will remain in full force.
4. Counterparts; Execution. This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which together constitute one instrument.
5. Force Majeure. Neither Party is liable for any delay or failure to perform caused by an event beyond its reasonable control, including fire, flood, earthquake, storm, strike, riot, war, terrorism, pandemic, or governmental order.
6. Survival. The Compensation, Confidentiality, Inspections, Warranties, Indemnification, Limitation of Liability, Intellectual Property, post-termination Pipeline Disposition, Non-Solicitation, Independent Contractor, Notice, and General sections survive termination of this Agreement.
7. No Construction Against Drafter. The Parties acknowledge that this Agreement was negotiated and that no presumption applies favoring or disfavoring either Party as drafter.
8. Acknowledgement. Contractor has reviewed this Agreement, understands its provisions, has had the opportunity to consult independent counsel, and is entering into it freely and voluntarily.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

JD MARKETING LLC DBA KILO ENERGY

By: _____

Name: _____

Title: _____

Date: _____

CONTRACTOR

By: _____

Name: _____

Title (if entity): _____

Date: _____

EXHIBIT A — COMPENSATION

Reference. Contractor's compensation is calculated by Company under the Pay Scale configured in the Commission Application. Each Deal is priced through the in-app calculator at submission and is bound to the Pay Scale in effect at the Deal's sold date.

Compensation Model. For each Installer, the Pay Scale sets a Baseline Rate per role (closer and setter). On a paired Deal, the rep performing each role earns the per-watt spread above their role's Baseline Rate, with above-split, trainer overrides, and other adjustments configured in the Commission Application. On a self-generated Deal, the rep keeps the per-watt spread above the closer's Baseline Rate.

EXHIBIT B — WHITE GLOVE SERVICE STANDARDS — CODE OF CONDUCT

Company has a long-standing policy that no individual associated with Company, including independent contractors, will make any false or misleading statement during a sales or marketing presentation or otherwise. Company expects and requires Contractor to work with the highest standard of honesty and integrity. Failure to comply with these White Glove Service Standards is grounds for termination of the Agreement.

Customer Interaction Requirements

- Contractor will explain costs and timelines accurately and honestly, and will not lie, embellish, or promise outcomes that may not occur (including utility-bill savings, timeline-to-PTO, tax-credit eligibility, or interconnection outcomes).
- Contractor will conduct all aspects of business that touch Customers without unfair, deceptive, or abusive acts or practices.
- No advertising, sales, or marketing claim by Contractor will be deceptive or misleading, whether by affirmative statement, implication, or omission. All claims must be supported by factual, verifiable sources.
- Contractor will be familiar with applicable advertising laws and FTC guidance on advertising and marketing.
- Contractor will not refer to a system as "free" in oral or written marketing or sales discussions unless the Customer truly will not pay anything for the system or the energy it generates. Any other use of "free" must clearly disclose what is and is not included.
- Quoted prices must be accurate and complete, with optional or additional items clearly labeled, payment terms clearly stated, and the period of price validity specified.
- Where prices include incentives (such as utility or government programs) with eligibility requirements, Contractor will fully disclose those incentives and the eligibility requirements, or refer the Customer to qualified resources, subject to limitations on tax advice.
- Estimated prices must be reasonably based on information Contractor possesses and clearly labeled as estimates.
- Comparisons of pricing or terms must not be misleading and must include all facts material to the comparison.
- Performance projections (production estimates) must clearly identify any omitted material factors and the reason for omission.
- Utility electricity-price projections must be clearly identified, verifiable, and based on commercially reliable sources.

- Contractor will clearly and truthfully identify Company and the assigned Installer in every Customer interaction.
- Contractor will seek openness and transparency and will not exploit a Customer's lack of knowledge. If Contractor becomes aware that a Customer materially misunderstands a key aspect of a transaction or system fit, Contractor will correct the misunderstanding.
- Contractor will consider a Customer's capacity to understand contract terms and ramifications before entering into a contract with that Customer.
- Contractor will not misrepresent the reason for any contact with a Customer.
- Customer questions will be answered honestly. If Contractor does not know an answer, Contractor will say so, find and report on the answer within a reasonable period, or direct the Customer to someone who can answer.
- Contractor will not make statements that are false or without reasonable basis in fact, and will not omit material information when an omission would make a communication misleading.

Contractor Conduct Requirements

- Be courteous and considerate to Customers and neighbors.
- No smoking, vaping, chewing tobacco, or other tobacco/nicotine use, and no use of any drugs or alcohol on Customer premises.
- When entering a Customer residence, remove shoes or wear shoe coverings.
- Dress cleanly and professionally in clean pants and shoes in good condition without rips or holes. Company may make branded apparel available; Contractor's use of branded apparel is optional and is not a condition of engagement or compensation.
- No cursing or disrespectful language. Contractor represents Company in every Customer interaction.